

2.	25CV1511	WILHARM v. GENERAL MOTORS LLC et al
Motion for Attorney's Fees		

The Notice does not comply with Local Rule 7.10.05. Repeated violations will be grounds for sanctions under Local Rule 7.12.13.

Plaintiff retained counsel on June 5, 2025, and they filed the Complaint on June 10, 2025. The case settled on December 10, 2025. Plaintiff is the prevailing party and is entitled to recovery of reasonable attorneys' fees and costs.

The hourly rate charged by Kimberli Zazzi and LaDawna Fleckenstein was \$500.00 per hour, and the rate was \$150.00 per hour for paralegals and administrative assistants. (Exh. 1; Zazzi Decl., ¶ 2). Plaintiff claims that these attorneys' rates are in line with those in this field in and around this geographical area but fails to establish the rates are in line with those prevailing in the community for similar services, as quoted in their reply. Plaintiff references an award in San Bernadino County, which is not comparable. The Court finds that an hourly rate of \$350.00 for attorneys and \$100 for paralegals and administrative assistants is reasonable.

Plaintiff's counsel claims a 1.5 enhancement, for a standard lemon law case. The Court is not convinced based on the facts of this case and the amount of time and work needed to resolve it, that an enhancement is warranted under the standard in *Ketchum v. Moses* (2001) 24 Cal. App.4th 1122, 1123, (citing *Serrano v. Priest* (1977) 20 Cal. 3d 25, 49).

Without the enhancement, counsel requests \$22,400 in fees for attorney tasks completed, \$3,480 for paralegal and administrative assistance, and \$993.74 in costs. Counsel further requests \$5,000 in anticipated costs. Plaintiff argues that an attorney fee award should "include compensation for all hours reasonably spent, including those necessary to establish and defend the fee claim" (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 639. While the Court agrees, it will not make an award based on anticipated time spent.

Defendant opposes the hourly rate, the enhancement and several billing entries. The Court has addressed the hourly rate and the enhancement, above. In terms of the billing entries that Defendant disputes, the Court agrees that 13.4 hours for drafting the fee motion is excessive and unreasonable. It is a 13-page motion, with 9 pages that are mostly or completely boilerplate language. The Court will award 6 hours for drafting the fee motion and accompanying documents, including review of the opposition and preparation of the reply.

The Court further finds that 2.7 hours of attorney time to "redact out atty client and work product from the time and status sheet" is excessive and unreasonable, especially considering that there are no redactions. This entry is stricken entirely.

May 1, 2026
Dept. 9
Tentative Rulings

Reducing the entries addressed above brings the attorneys' time down to 34.7 hours at a rate of \$350/hour for a total of \$12,145. The paralegal and administrative time is reduced to \$2,320 using a rate of \$100/hour. The total award for fees is \$14,465 and \$993.74 in costs.

TENTATIVE RULING #2: PLAINTIFF IS AWARDED \$14,465 IN ATTORNEYS' FEES AND \$993.74 IN COSTS, TO BE PAID BY DEFENDANT WITHIN 14 BUSINESS DAYS OF THE SIGNED ORDER.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.